Data Consent

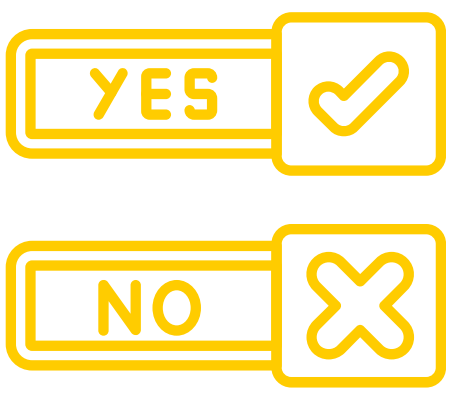
What is Data Consent?

Data consent is the process in which individuals give permission, willingly and knowingly, to their data being used, stored and processed by a business, organization or individual.

Digitally, data consent can look like a check box that you press to agree to the privacy terms when you sign up to use a service. Data consent is essential for people to have control over their personal information.

Data Consent in the Context of AI

In the context of AI, data consent is when individuals give permission for companies, organizations or individuals to use their personal data to train AI systems. There are many issues related to data consent due to the complexity of AI systems and the ethics that come with it.



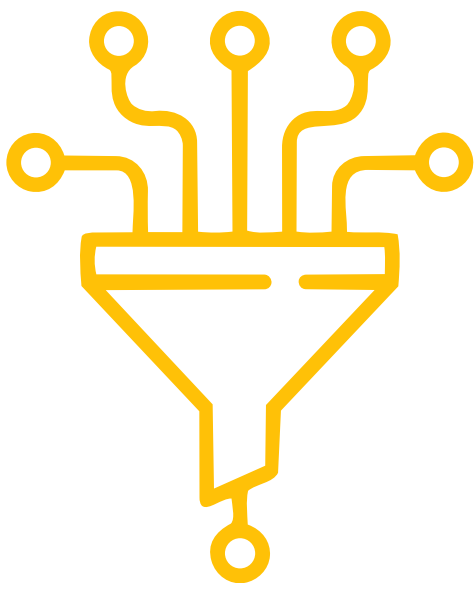
Issues about Data Consent with AI

Some of the issues that have risen about AI and data consent:

- Consent methods have been reduced to check boxes that are required to use services, with privacy agreements that are too long for most to read and understand. This method makes the choices binary: use the service or don't; it removes any sense of nuance when agreeing to what purposes their data can be used. Users are unable to distinguish between what they want their data to be used for and what they do not want.
- There will always be a gap and incompleteness to the data collection agreement because it is impossible to predict every single way that data will be used in an AI system. Therefore it is impossible to gain complete, explicit and knowing consent.
- Another aspect of data consent is that users should be able to remove their consent towards their data being collected at all times, as easily as they give permission.

What you can do about data consent

Read the privacy and data collection agreement before creating an account and agreeing. Look for any information on how the company/organization processes your data and how they keep the information encrypted and secure. If you already signed up, filter through all of the services that you use to identify those that are non-essential, and review the privacy policy for those services specifically.

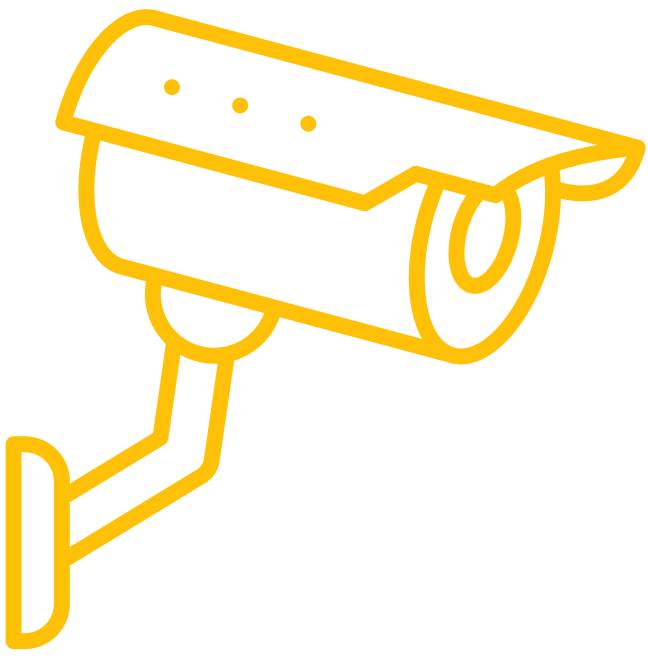


Privacy and Surveillance

AI Surveillance and the Chilling Effect

In the past year (2026), the debate of mass AI surveillance across the US has risen rapidly to attention. The US Department of Homeland Security is increasing the deployment of AI in surveillance technology. Though such decisions are supported by the reasoning that they are increasing the security of the nation, the underlying motivations may be considered less saint-like. The US Department of Homeland Security is using AI to keep track of social media accounts, and keeping tabs on immigrants, journalists, legal observers and protesters.

Within the computerized era, tracking communication between individuals, following locations and the financial transactions we take part it has always been possible. However, AI technology enables sophisticated interpretation and understanding of what kind of communication is taking place, what we are buying and why. Facial recognition technology also allows for every individual to be tracked completely, whether in public or in private. Meaning that everyone would be “always watched.”





The rise of AI being used in surveillance has brought up concerns about various things. This includes the following:

- Faulty facial recognition software due to racial data bias, leading to false accusations of crime and social injustice.
- Inflexible and automated enforcement of laws and social rules, meaning that there is not longer situational leniency as to what people do.
- The Chilling Effect

The Chilling Effect

The chilling effect is where people start to become more conformist and self-censoring is that people do when they are under threat of surveillance and social order. This is likely what will happen once AI surveillance becomes widespread.
It is easier to control individuals when they are self-conscious of what they are doing. The CEO of Oracle, Larry Ellison said that “Citizens will be on their best behavior because we’re constantly recording and reporting.”





China has already been developing such technologies and deploying them actively. For example, Lao Duan, was blacklisted after being unable to repay loans due to being fired from his job. Then, he was identified by an AI surveillance system in a major intersection, which then displayed his face on a nearby billboard claiming that he was untrustworthy.

Privacy and Surveillance

The 4th Amendment

The fourth amendment is a part of the US constitution. It states that searches and seizures by the government can only be done under reasonable suspicion and evidence. The congress defines the constraints of this amendment as such:

- Physically intruding on a constitutionally protected area
  - Meaning that they unreasonable searches and seizures can not happen in places like someone's personal home
- When the government violates a subjective expectation of privacy that society recognizes as reasonable
  - Such as going through someone's car without permission
- Occurs when there is some meaningful interference with an individual's possessory interests in that property
  - When they perhaps have to take and open up boxes that were sealed inside someone's car

The 4th Amendment and AI

The legality of searching through someone's chatbot history without permission comes with 2 large considerations. The first is the Third Party Doctrine, and the second is the Stored Communication Act (SCA).





The Third Party Doctrine states that "a person has no legitimate expectation of privacy in information he voluntarily turns over to third parties" and that an individual "takes the risk, in revealing his affairs to another, that the information will be conveyed by that person to the Government". An example of this is that the Supreme Court ruled in 1976 that a person can not expect privacy from a bank when the government asks for information about financial transactions, since the individual is a client, and the bank is a third party. Therefore, any information that is digital (under the use of a service) is weakly protected by the 4th amendment. This means that if AI companies and chatbots can be considered 3rd parties, police may legally be able to draw out information from private chats.

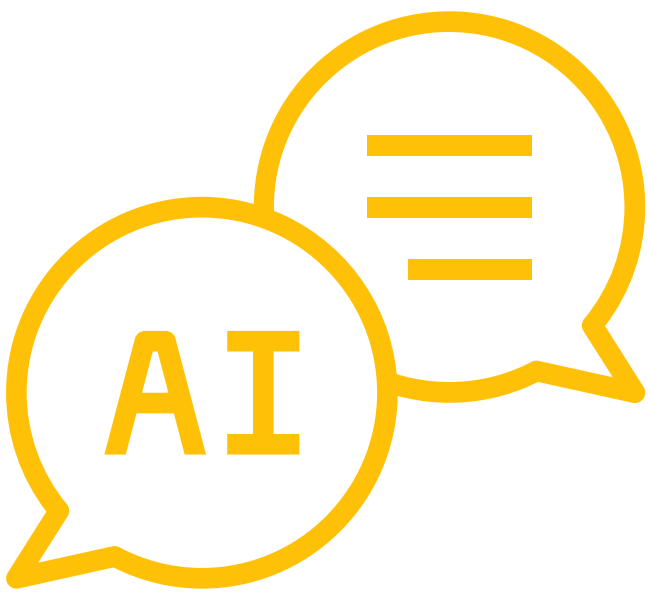
There are exceptions to this as well, especially when the data was not given over intentionally or with consent and the user of that service is essential to operate and participate in modern society.



Privacy and Surveillance

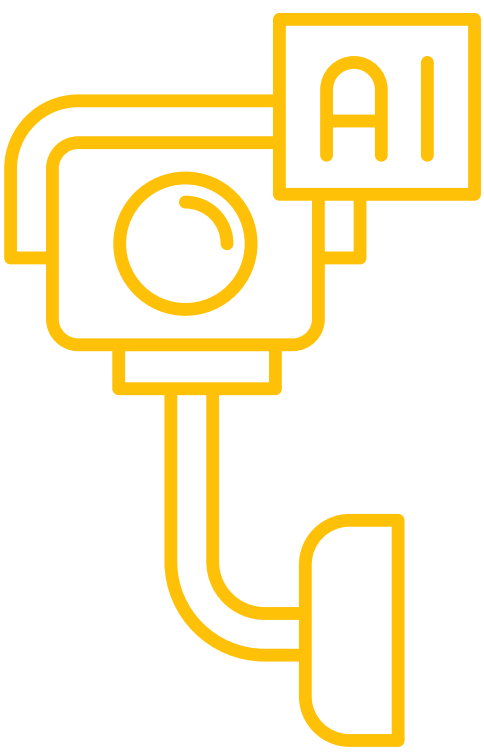
The other consideration when thinking about AI and the 4th amendment is the Stored Communication Act (SCA). The SCA prohibits providers(of digital services) from revealing to any person or entity. However, even the SCA has exceptions, such as when the government compels the information.

There have also been cases of reverse keyword warrants being given to police in order to access chatbot conversation histories. For example, the police may know the location and time of an event(such as arson) but not know who committed the crime. In these cases, officials can request for information about who searched up words/phrases related to arson in the past few days from providers. This has been done before, where the police were able to compel information from OpenAI about a user's chatbot conversation history, name, and IP address of the suspect.





A similar case that can be looked at to gauge the legality of AI surveillance is Automatic License Plate Recognition (ALPR). This is a service that recognizes license plates on the road, tracking them and providing speeding tickets or parking tickets to the car owner's email. This is very similar to AI surveillance, where everyone is being tracked by their faces (instead of license plates). Currently, it has been stated that ALPRs do not violate the 4th amendment or any privacy laws because license plates are public, and using license plates are not under the assumption of privacy, anyone could take the information off the streets.



Apart from AI, any form of "electronic eavesdropping, GPS tracking, thermal imaging, and wiretapping that, when adopted by law enforcement, have sometimes resulted in legal tension with constitutional privacy protections." This may apply for AI surveillance systems as well, though it remains a gray area.



If AI surveillance is treated the same way as ALPRs, then faces will be considered public, and tracking of faces will not be considered a violation of the 4th amendment or any privacy laws.

However, the field of AI surveillance being used in policing is still an unknown, as there has not been enough discussion to draw a clear cut answer.